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THE HISTORY OF THE PATENT SYSTEM UNDER THE PREROGATIVE AND AT COMMON LAW.

NOTWITHSTANDING a general admission of the theoretical importance of an acquaintance with the principles and practice of the patent system under the common law, it will, nevertheless, be allowed that in practice the Statute of Monopolies has been regarded as the first and final source of authority. In 1827, however, when the subject of patent law reform first began to claim the attention of the Legislature, an effort was made by the Lower House to secure more accurate and positive information. In this year the Crown, in compliance with a resolution of the House, ordered a return to be prepared 'of the titles and dates of all special privileges and patents granted in England previous to March 1, 1623, and stating whether for English or foreign manufactures and inventions.' Unfortunately, the resources of the Keepers of the National Records proved unequal to the demands made upon them; and as a matter of fact the return was never presented. The resolution, nevertheless, deserves to be rescued from the oblivion into which it has fallen. For, while on the one hand it excludes as foreign to the inquiry an investigation of the commercial privileges of the trading companies¹, it includes all grants made in respect of manufactures or inventions irrespective of the nature of the privileges conferred therein. In other words, we are told to look, not for Monopoly patents in the etymological sense of the words, but for grants made in furtherance of particular industries. With this clue to guide us we shall at once proceed to inquire, firstly, at what period the Crown by means of its grants first actively interfered in the promotion of industry, and secondly, what relation these grants may be found to bear to the first recorded Monopoly patents of invention. For this purpose we may briefly summarize the conclusions which may be obtained from a perusal of any standard history of industrial progress in this country.

During the period of history known as the Middle Ages, the industrial attainments of the English were far below the level of their continental rivals, France, Germany, Italy, Spain and the Low Countries. Moreover, throughout Europe progress in the manufacturing arts is found to be due, not so much to individual experimental effort, as to the slow infiltration of improved

¹ See note on p. 153.

processes, the source of which is ultimately traceable to the more advanced civilization of the East. As late as the sixteenth century the type of English society was mainly that of a pastoral and mining community, exchanging its undressed cloth, wool, hides, tin and lead for the manufactures of the continent and the produce of the East. The rise of the native cloth industry in the fourteenth century gave to this country her first considerable manufacturing industry: and, inasmuch as the development of the industry is universally attributed to the fostering influence of the Crown, it will be necessary to scrutinize somewhat closely the various grants by means of which these results were obtained. For the facts here presented no originality is claimed. Their connexion, however, with the history of patent law has never yet been properly established.

In the letters of protection to John Kempe and his Company, the text of which is here reproduced from Rymer, will be found the earliest authenticated instance of a Royal grant made with the avowed motive of instructing the English in a new industry.

Pro Johanne Kempe de Flandria, Textore Pannorum, super Mestero suo exercendo.

A. D. 1331. Pat. 5 Ed. III, p. 1, m. 25.

REX Omnibus Ballivis, etc., ad quos, etc., Salutem

SCIATIS quod, cum Johannes Kempe de Flandria, Textor Pannorum Lancorum, infra Regnum Nostrum Angliae causa Mesteri sui inhibi exercendi et illos qui inde addiscere voluerint, instruendi et informandi, accesserit moraturus et quosdam Homines et Servientes ac Apprenticios de Mestero illo secum adduxerit,

SUSCEPIMUS ipsum Johannem, Homines, Servientes ac Apprenticios suos praedictos, ac Bona et Catalla sua quaecumque, in protectionem

PROMITTIMUS enim nos aliis Hominibus, de Mestero illo, ac Tinctoribus, et Fullonibus venire volentibus de partibus Transmarinis, ad morandum infra idem Regnum nostrum ex causa praemissa, consimiles litteras de Protectione fieri facere debere.

IN CUJUS, etc. quam diu Regi placuerit duraturas. Teste Rege apud Lincolniam, vicesimo Tertio die Julii.

Here we have, not a solitary instance of protection, but the declaration of a distinct and comprehensive policy in favour of the textile industry; for the grant contains a general promise of like privileges to all foreign weavers, dyers and fullers, on condition of their settling in this country and teaching their arts to those willing to be instructed therein. Nor is this all. In 1337 these letters patent were expressly confirmed by a statute framed for the protection of the new industry, cap. 5 of which enacts, that

all clothworkers of strange lands, of whatsoever country they may be, which will come into England, Ireland, Wales, and Scotland, and within the King's power, shall come safely and surely and shall be in the King's protection and safe-conduct to dwell in the same lands, choosing where they will; and to the intent that the said clothworkers shall have the greater will to come and dwell here, Our Sovereign Lord the King will grant them franchises as many and such as may suffice them¹.

As it is with the continuity rather than with the success of the new policy that we have here to deal, we shall briefly enumerate in their chronological order the grants which appear to have been issued in furtherance of the above object. In 1336 similar letters were issued (10 Ed. III, Dec. 12) to two Brabant weavers to settle at York in consideration of the value of industry to the Realm. In 1368 (42 Ed. III, p. 1) three clockmakers of Delft were invited to come over for a short period. In the following reign we are informed (Smiles, *Huguenots*, p. 10) that the manufacture of silk and linen was established in London by the king by the introduction of similar colonies from abroad, but whether by letters patent or otherwise has not been ascertained. The first instance of a grant made to the introducer of a newly-invented process will be found in letters patent dated 1440 (18 H. 6. Franc. 18. m. 27) to John of Shiedame, who with his Company was invited to introduce a method of manufacturing salt on a scale hitherto unattempted within the kingdom. Twelve years later, in 1452, a grant was made in favour of three miners and their Company, who were brought over from Bohemia by the king on the ground of their possessing '*meliozem scientiam in Mineris*' (Rymer, xi. 317).

These instances, although, probably, not exhaustive of the industrial grants of the fourteenth and fifteenth centuries, sufficiently illustrate the well-known citation from the Year Book, 40 Ed. III, fol. 17, 18, to the effect that the Crown has power to grant many privileges for the sake of the public good, although *prima facie* they appear to be clearly against common right.

With the alchemical patents of Henry VI, wrongly assigned by Hindmarch to the reign of Edward III, we must deal briefly.

¹ In the recent report of the Hist. MSS. Comm. xiv, pt. viii. p. 7, Lincoln, there is an ordinance dated May 1, 1291, which at first sight carries back this policy of encouragement to a still earlier date. It runs as follows: 'and that men may have the greater will to labour in the making of cloth in England, Ireland, and Wales, We will that all men may know that We will grant suitable franchises to fullers, weavers, and dyers, and other clothworkers who work in this mystery so soon as such franchises are asked of us.' The '*Athenaeum*,' however, points out from internal evidence that the true date of the document is probably May 1, 1326. See also Calendar of Patent Rolls, 1327-30 under date May 1, 1327, where it appears that the first act of Ed. III. was to cause a renewal of the '*Ordinance of the late king*.'

In 1435-36 two successive Commissions were appointed to inquire into the feasibility of making the philosopher's stone for medicinal and other purposes. Respecting these Commissions we are assured by Prynne in his *Aurum Reginae* that they proved 'entirely abortive for aught that he could find.' The fiction of a monopoly having been intended, based upon an obviously inaccurate account in Moore's Reports, p. 671, may be dismissed as the invention of a later date. Other so-called alechemical patents resolve themselves into either warrants for the arrest of the individuals concerned, or dispensations from the penal statute of 5 Henry IV, by which the practice of transmutation was made a felony. In any case the connexion of these grants with the history of patent law must be considered as exceedingly remote.

With the accession of the Tudor dynasty the patent system underwent a change which divested it of all constitutional value. In place of the open letters for the furtherance of the national industry, we now find the Crown entering into secret negotiations for the purpose of attracting skilled foreigners into its own service. Amongst these we may instance the introduction of German armourers, Italian shipwrights and glass makers, and French iron founders. In the absence of any grants recorded in connexion with these transactions, it is impossible to define the precise relations existing between the Crown and the immigrant artisan. The Italian glass makers introduced circa 1550, i.e. under the protectorate of Somerset, were recalled by the Venetian State; but the French iron founders appear to have successfully established in the Weald district the art of casting iron ordnance, which shortly afterwards superseded the older forms of bronze cannon. The Tudor practice, however, must be regarded as a perversion of the mediaeval policy of the encouragement of industry; and it is to other causes that we must look for the reconstruction of the system by Elizabeth, in whose reign the principles of the modern patent system were first distinctly enunciated and carried into practice.

The rise of a capitalist middle class to wealth and political influence in the sixteenth century is ascribed to the disappearance of the old Nobility during the Wars of the Roses and the redistribution of monastic property under Henry VIII. The immediate effect of these changes is seen in the development of the native spirit of speculative enterprise and the rise of the Joint Stock Companies. The first instance, according to Professor Cunningham, of this class embarking in industrial schemes is to be found in the Statute 1 & 2 Phil. & Mary, cap. 14, A. D. 1555. From the preamble of this Act we gather that certain merchants of Norwich had by the introduction of Italian workmen so improved

the manufacture of Russels, Sattens, Satten reverses and fustians, that they were enabled to compete successfully with their foreign rivals. As a reward for their enterprise the merchants obtained a charter with a practical monopoly of the industry, together with other privileges. This class we shall now find undertaking in an hour of need to introduce under the direction of the Crown, but at its own charges, certain industries, the provision of which was considered indispensable for the safety and independence of the Realm. With this preface we propose to leave the grants to speak for themselves. The list, which has been prepared from the Patent Rolls and Calendars, constitutes the first attempt to fix the date of the introduction of the English patent system. It is, moreover, believed to be a complete record of the industrial monopoly licences issued during the period 1561-70¹.

No. I. 1561. Jan. 3. A lychense to Stephen Groyett and Anthony Le Leuryer to make white sope [for 10 years].

The best English soap of the period was the soft mottled Bristol soap, 'very sweet and good,' but unsuitable for fine laundry work, for which the hard Spanish soap of Castile was largely employed. The grant stipulates that two at the least of the servants of the patentees shall be of native birth, and that the soap, which is to be of the white hard variety, shall be as good and fine as is made in the *Sope house of Triana or Syvile*. The patentees are bound to submit their wares for the inspection of the municipal authorities, and on proof of defective manufacture the privilege is void. The grant appears in full in 'Engineering,' June 22, 1894, with a brief outline of the origin of patent law by the present writer.

No. II. 1561. Aug. 8. License to Philip Cockeram and John Barnes to make saltpetre [for 10 years].

At the date of the grant saltpetre was not manufactured within this country; most of the imported article arriving *viâ* Antwerp, a port controlled by the Catholic King of Spain. The Queen therefore bargained with Gerard Honricke, 'an almayne Captain,' to come over and teach her subjects 'the true and perfect art of making saltpetre' as good as that made 'beyond the seas,' stipulating, however, that the secrets of the manufacture should be reduced to writing before the promised reward of £300 should be paid. On the arrival of Honricke the Queen resigned her bargain (Pat. 3 Eliz. p. 6) into the hands of the above patentees, who were both London tradesmen. The specification will be found in full in 'Engineering,' June 15, 1894.

No. III. 1562. May 26. Privilege to George Cobham, alias Broke, for a dredging machine [for 10 years].

The patentee represents that 'by diligent travel' he had discovered a machine to scour the entrances to harbours, &c., to a depth of sixteen

¹ It should, perhaps, be stated that this list has been prepared from an examination of the entries on the Calendars of the Patent Rolls—all doubtful entries having been compared with the Rolls themselves. Its claim to completeness, therefore, rests upon the sufficiency of these Calendars.

feet. The patent is for the importation of a sufficient number of these machines. The rights of scouring channels by the older methods are reserved, and the Queen expresses a hope that her favourable treatment of the patentee 'will give courage to others to study and seke for the knowledge of like good engines and devyses.'

No. IV. 1562. Dec. 31. License to Wm. Kendall to make Alum in Devon, Cornwall, &c. [for 20 years].

In the recital of the grant Kendall represents that he had discovered ores of alum in abundance with a practical method of its extraction. The manufacture was started in Devonshire, but failed. *See under 1564, July 3, Alum patent of Cornelius De Vos.*

No. V. 1562. Dec. 31. Patent to John Medley for an instrument for the drayninge of water [for 20 years].

The recital states that mines of tin, lead, coal, &c., in Devon as elsewhere, were drowned and altogether unoccupied, 'owing the great habundance of water.' It is not clear that Medley lays claim to the invention of the device, although the grant covers all subsequent improvements. The rights of users of old machines are reserved, and clauses are inserted regulating the compensation to be paid for entering upon abandoned properties. In case of disputes arising, the quarrel is to be referred to the Privy Council. The source of inspiration of this and the numerous subsequent patents for mine drainage and water raising will be found in the illustrated work of Agricola published in 1559.

No. VI. 1563. Feb. 26. A license to George Gylpin and Peter Stoughberken to make ovens and furnaces [for 10 years].

In the S. P. Dom. 1565 there is a certificate from some London brewers, who testify to the economy of fuel effected by the furnaces of a German, Sebastian Brydigonne, who may have been connected with the above patentees. The grant refers to the growing scarcity of wood fuel, owing to the large consumption in the brewing and baking trades. The grant is void in case the patentees fail to *come over* and put the grant into practice within two months, or prove extortionate in their charges.

No. VII. 1563. June 22. A license to Burchsard Cranick to make engines for the draining of waters [20 years].

This grant is similar to that of Medley's, but gives some additional powers of entering upon old and abandoned mines under proper restrictions. The engine is stated to have been lately invented, lerned and found out by Cranick, and to be unlike anything devised or used within the realm. Three years are allowed for the patentee to perfect and demonstrate the utility of his engines. Disputes are to be referred to the Warden of the Stannaries and three Justices of the Peace.

No. VIII. 1564. July 3. License to Cornelius de Vos to make Alum and Copperas [for 21 years].

De Vos obtained this grant on the strength of the discovery of ores of alum and copperas (sulphate of iron) in the Isle of Wight (Alum Bay). His

rights were shortly afterwards assigned to Lord Mountjoy, who in 1566 obtained parliamentary confirmation of the grant. Both the Queen and Cecil were originally financially interested in the success of the experiment. In 1571 Bristol merchants complain of the decay of their trade owing to the fact that iron and alum, which had hitherto come from Spain, were now made better and cheaper in this country. See also Stow's *Annals*, 1631, pp. 897, 898; Geological Survey, *Memoirs, Jurassic Rocks*, i. 452-454. The grant confers the right to take up workmen at reasonable wages, together with all materials requisite for the manufacture.

Nos. IX, X. 1564. Oct. 10. Commission to Daniel Houghsetter and Thomas Thurland for mining in eight English Counties.

1565. Aug. 10. Special license to the same concerning the provision for the minerals and mines of gold, silver, &c.

This grant was the outcome of the action of the Queen, who early in her reign sent for expert German miners to revive the mineral industries of the kingdom. Thurland, master of the Savoy, appears to have acted as agent and go-between in the matter. Copper mining, practically a lost art, was at once started at Keswick on a large scale; the metal being required for the casting of bronze ordnance. The validity of the grant was challenged by the Earl of Northumberland on the ground that the work was within the Royalties granted to his family in a former reign. The case was decided in favour of the Queen, on the ground that the neglect of the Earl and his predecessors to work the minerals during seventy years 'had made that questionable which for ages was out of question' (Pettus, *Fodinae Regales*). On May 28, 1568, the Company was incorporated by Charter as the Society of the Mines Royal, which existed down to the eighteenth century. Houghsetter migrated to Cardiganshire, where valuable deposits of silver were discovered, and where he founded a family. See also Col. Grant-Francis, *Copper-smelting*.

No. XI. 1565. Jan. 29. License to Armigil Wade and Wm. Herlle for the manufacture of sulphur and oil [for 30 years] (Latin).

The full text of the grant will be found in Rymer. The sulphur was required for making gunpowder, and the discovery may be attributed to the labours of John Mangleman, a German, who was authorized to search for earth proper for making brimstone (Lansd. MSS.). The second part of the invention related to the extraction of oil from seeds for finishing cloth. The proper machinery for extracting oil from rape and other seeds does not seem to have been known at the period. The grant was subsequently reissued to Wade and another for a further term of thirty years.

No. XII. 1565. April 20. License to Roger Heuxtenbury and Bartholomew Verberick for Spanish leather.

Shoes of Spanish leather, i.e. yellow leather, appear to have been preferred 'to those which shine with blacking' (Howell, *Letters*, I. i. 39). The grant confers an exclusive right of manufacture, and dispenses with the provisions of an Act forbidding the export of leather. On the other hand,

it insists on the employment and instruction of one English apprentice for every foreigner employed, and subjects the industry to the inspection of the Wardens of the Company of the Leather Sellers, who are responsible for 'the skins being well and sufficientlie wrought.' This grant must not be confused with a subsequent license to Andreas de Loo to export felts which gave great offence to the trade.

Nos. XIII, XIV. 1565. Sept. 17. Two licenses to Wm. Humfry and Christopher Shutz to dig (1) for the Lapis Calaminaris, (2) for tin, lead, and other ores.

These grants covered geographically those parts of England not included in Houghsetter's patents and the Alum patent of De Vos. The calamine or zinc carbonate was an essential in the manufacture of latten or brass, which it was proposed to use in casting ordnance (S. P. Dom. Eliz. vol. 8, No. 14). The mineral was discovered in Somersetshire in 1566, and the first true brass made by the new process was exhibited in 1568. The patentees also erected at Tintern the first mill for drawing wire for use in wool-carding. In 1568 the Company was incorporated by Charter as the 'Company of the Mineral and Battery Works,' and remained under practically the same management as that of the Society of the Mines Royal (Stringer, *Opera Mineralia Explicata*). In 1574, and again in 1581, the assignees of the patent obtained an injunction against several owners of lead mines in Derbyshire for using certain methods of roasting lead ores in a furnace worked by the foot blast and other instruments invented by Humphrey after the date of his patent. The Court of Exchequer ordered models to be made, and after repeated adjournments a Commission was appointed to investigate 'the using of furnaces and syves for the getting, cleansing, and melting of leade Ower at Mendype, and the usage and manner of the syve' (Exchequer Decrees and Orders). The depositions in this case are still preserved, but it is impossible to trace the history of the case to its completion. Coke informs us that as regards the use of the sieve, the patent was not upheld on the ground of prior user at Mendip. It is a peculiarity of the grant that it covered all subsequent inventions of the patentees in this particular branch of metallurgy. The hearth was invented after the date of the patent, and one of the questions to be decided was whether a subsequent invention could be covered by letters patent or no.

No. XV. 1565. July 31. License to Francis Berty to put in practice the trade of making white salt.

The patent was surrendered and reissued in the following year.

No. XVI. 1565. Sept. 7. License to James Acontius for 'the manufacture of machines for grinding, &c. [for 20 years] (Latin).

Acontius was an Italian engineer who had taken out letters of naturalization and was in receipt of a small Crown pension. In 1559 he first suggested to the Crown that a monopoly was the most effectual method of rewarding an inventor. His suggestion appears to have borne fruit in the adoption of the monopoly policy in 1561; but Acontius did not receive his patent until this year. Cf. Antiquary, 1885; Ordish, Early English Inventions.

No. XVII. 1566. Jan. 23. License to Francis Berty for the making of salt.

Berty was a native of Antwerp, and probably introduced the Dutch mode of making salt for fish-curing. The salt was extracted by boiling in copper pans. Plans of the furnaces will be found in P. P. Dom. 1566. The later salt patents of the reign gave rise to great local discontent, owing to the oppression of the patentees, who claimed the right to control the price of salt within certain areas.

No. XVIII. 1567. Aug. 26. A special license to Peter Anthony van Ghemen [for 21 years] to cut iron, save fuel and extract oil.

In the Lansd. MSS. there is a declaration of the inventions of the above individual and his Company. They consisted of a process of tempering iron so that it might be cut into bars for various purposes, and of special mills for corn and for extracting oil from rape-seed, which for want of proper appliances was sent out of the kingdom to be extracted.

No. XIX. 1567. Sept. 8. License to Anthony Becku and John Carré to make [window] glass [for 21 years].

In 1557 English glassmakers were said to be 'scant in the land,' the seat of the manufacture, which was confined to small green glass ware, being at Chiddingfold. The French patentees were assured by the native glass-makers that they were unable to make the foreign broad or window-glass. This patent may be said to have laid the foundation of modern English glass-making; see Antiquary, Nov. 1894-May, 1895. It should be noted that the Crown had twice failed to manufacture glass on its own account. The patent insists on the instruction of the English as a condition of the validity of the grant.

No. XX. 1568. Nov. 10. License to Peter de la Croce (De la Croix) to make Cendre de Namour [for 7 years].

A patent for dyeing and dressing cloth after the manner of Flanders. English cloth was still exported in the white, undressed condition to be finished abroad. According to the 'Request of a true-hearted Englishman,' dated 1553 (Camden Miscellany), this was due to 'our beastlie blindness and lacke of studyous desire to do things perfectly and well.' But probably the trade was hampered by the absence of the subsidiary industries of oil, alum, &c.

No. XXI. 1569. Apr. 20. A license to Dan. Houghsetter to use the arte of myninge [for 21 yeares].

[See also patent dated Oct. 1564.] The grant is for setting up and using engines for mine drainage.

No. XXII. 1569. May 26. License to John Hastings to make clothes called Frestadowes [for 21 years].

Frisadoes may be regarded as a variety of 'broad bayes,' but of a somewhat lighter character, and dyed and finished for the retail trade. The

patent therefore was essentially for dyeing and finishing cloth. Hastings' suit was supported by the Dyers Company, who reported that if English cloth were dyed within the country the Queen would gain £10,000 annually by the increased custom. The manufacture was established at Christchurch, but Hastings seems to have used his grant vexatiously by wantonly molesting the Essex weavers on the ground that the manufacture of baize came within the four corners of the patent. The matter was referred by the clothiers of Coggeshall to the Exchequer, when they claimed to have gained the day (S. P. Dom. Eliz. vol. 106, No. 47, and Noy, 183). Subsequently an agent of Hastings was brought before the Lord Mayor's Court for trespass, and was fined £9 for molesting a weaver within the jurisdiction of the city (S. P. Dom. Eliz. vol. 173, No. 28).

For the period 1570-1603 a mere summary must suffice. In 1571 Richard Matthew obtained a patent for knife-handles 'made of divers pieces of horn mixed with yellow or white plate,' which obtained for him a lasting reputation. The knives were to be stamped with the half-moon, indicative of their Turkish origin, on the blade and handle. The patent was disputed by the Cutlers' Company, who represented that they ought not to be restrained from using a slight improvement on an old industry, and the patent was not upheld (Noy, 183). In the same year Richard Dyer, an escaped prisoner of the Portuguese, secured a grant for the manufacture of earthen fire-pots, an art which he had learned in exile; his patent was renewed in 1579. In 1574 the art of making glasses after the Venetian fashion was introduced by Verselyn (Antiquary, March 1895) in the Hall of the Crutched Friars. In 1578 Peter Morris inaugurated the house-to-house system of water supply by forcing Thames water by a new engine at London Bridge (Antiquary, Aug.-Sept. 1895). These works continued to exist down to the removal of the bridge in 1822. Amongst patents of minor interest we may note grants for mine drainage, water supply, musical and mathematical instruments, milling machinery, sail-cloth, oils, salt, vinegar, starch, and saltpetre. The mention of these latter articles will be sufficient to remind the student of Elizabethan industry that we are approaching another and less pleasing aspect of the patent system, the main features of which are faithfully reflected in the report of the Monopoly debate of 1601, which has been handed down to us in the Journal of Simon D'Ewes. Into the merits of this agitation, however, we must for the present refrain from entering. The subject is complicated by considerations affecting the commercial rather than the industrial policy of the reign, an analysis of which would unduly extend the limits of this essay. We shall therefore conclude our survey by briefly indicating the chief points of difference in the position of the patentee under the Elizabethan and modern system respectively.

Under the mediaeval system of patent law the Crown naturally regarded itself as the sole patron and arbiter of the destinies of the new industry introduced under the protection and authority of its letters patent. But, with the acceptance by the Crown of the Monopoly policy advocated by Acontius in 1559, the responsibility for the introduction of new industries was by a gradual process of devolution shifted from the Crown to the patentee, upon the faith of whose representations the grant was both drawn and issued. The Queen, nevertheless, unconscious of the revolution which was being effected in the system, asserted and retained to the end of her reign her absolute right of jurisdiction in all cases of dispute arising out of these grants. But to dispute the Queen's licences before the Council or in the Court of Star Chamber or in the Exchequer constituted a risk which few individuals cared to run, as the Courts were apt to regard non-compliance with the requirements of the patentee as evincing a want of respect for the Queen's authority. In 1601, however, this position was challenged by the Houses, and a bill was prepared declaratory of the law upon the subject. This step wrung from the Queen a concession that her grants should be left to the law *without the force of Her Prerogative*; whereupon the bill was dropped. In 1602 the test case of *Darcy v. Allin* was heard; and with this case commences the history of the English common law patent system. Nevertheless, to this day the phraseology of the patent grant bears witness to the existence of that earlier period when patents were granted without application *ex mero motu et certa scientia* on the part of the Crown—when offenders were liable to penalties in the Queen's Court for *contempt of this Our Royal Command*; and when the power of summary revocation was committed to a quorum of six of the Privy Council, because at that period the right to challenge the validity of the royal grants in the Courts of common law had not been effectively established.

'All men of the law know,' said Bacon in 1601, 'that a bill which is only expository to expound the common law doth enact nothing.' Hence the common law rights of the importer remained unaffected by the Statute of Monopolies, which confined the legitimate exercise of the prerogative to the true and first inventor¹. The choice of language employed by the framers of this statute appears to have been dictated not so much by a desire to restrain unduly the exercise of the prerogative as to avoid lending a semblance of legality to grants

¹ The connotation of the term 'inventor' has been unduly restricted. It is used indifferently in these grants with such phrases as 'the first finder out,' 'discoverer of useful arts,' &c. The word 'invenio,' I come upon, denotes primarily a physical act rather than a mental process. The Act sought to vest these privileges in those who had actually contributed to the introduction of the new art, to the exclusion of Court favourites and others.

which in future might be exercised to the public detriment. Be that, however, as it may, it is clear that, prior to this statute, the Crown and Courts alike recognized two classes of individuals, irrespective of their nationality, as the proper recipients of the royal favour, (1) the bringer-in or importer, (2) the first finder or inventor — the latter grounding his title to favourable consideration on the fact that he possessed in common with the importer the qualification of introducing a new industry within the realm. In other words, the rights of the inventor are derived from those of the importer, and not vice versa as is commonly supposed. A closer examination, indeed, reveals the fact that the inventor's rights were at first regarded as of doubtful validity where proof or probability could be adduced of the invention prejudicially affecting an existing industry; as in the case of Lee's application for the stocking-frame, which is said to have been rejected on the ground that the machine proposed to supersede manual labour. And in 1601, in the discussion on the bill 'for the promotion of good arts,' which proposed to invest in the introducer and improver alike a lifelong copyright of their invention, it was objected that all improvements were not profitable to the state, and that the granting of licences for small additions would breed confusion (D'Ewes, 678), the bill being ignominiously rejected upon the second reading. That the same view was held by the Queen's Courts is shown by two out of the three cases decided prior to *Darcy v. Allin*. In the Derbyshire lead-mining case the claims of the assignees of the patent of Humfry & Shutz were disallowed in the Court of Exchequer on the ground that it was 'easier to add than to invent,' the Court holding that the differences exhibited by the ore-sifting apparatus of the plaintiffs and that used at Mendip were insufficient to support the monopoly. A more important case decided before the Council is known as Matthew's case. The valuable nature of the improvement in Matthew's knife-handles was not disputed by the Cutlers' Company, for they alleged that the monopoly would be the ruin of themselves and their families and apprentices (Lansd. MSS.). The patent was not upheld, on the broad consideration that the object of the system was the introduction of new industries and not the displacement of old. The position of the improver, as is well known, was not finally decided until 1772.

But it is in respect of what constitutes a new manufacture that the divergence of modern patent law from the spirit of the old system is most clearly seen. The Elizabethan policy aimed beyond question, as a perusal of the grants will amply testify, at the introduction of those industries the products of which had hitherto figured most prominently in the list of imports, viz. alum, glass,

soap, oils, salt, saltpetre, latten, &c., &c. Now the proof of a single sale is held to be destructive of the novelty of the invention. So too with the case of disclosure by printed publication. In the sixteenth century the sole test of the monopoly contrary to the law, as defined by Coke, was that the grant should not seek to restrain the public of any freedom or liberty that they had before, or hinder them in their lawful trade. For all practical purposes therefore it was sufficient for the patentee to prove that the industry had not been carried on within the kingdom within a reasonable limit of time to render his grant unassailable on the score of novelty. The tendency of modern legislation to recur to the less exacting standard of novelty may be illustrated in the recent legislation of Germany, Austria, and the amending bill of last session.

On the nature of the patent grant the history of the Elizabethan monopolies throws some new light. The exclusive right of sale, which is supposed to be the kernel of the patent grant, is in point of fact subsequent to and derived from the sole right of manufacture, from which, in the earlier stages of the system, it was by no means an inseparable accident. On the contrary, with the exception of the grant to Verselyn, who obtained an exclusive control over the Venetian glass trade, the rights of the foreign merchant and the discretion of the buyer in the home markets were left absolutely unaffected by the terms of these grants, which, accordingly, must be considered as manufacturing and not as commercial privileges¹. The statement that what is known as the working clause is unknown to English patent jurisprudence is now no longer tenable. Apart from the frequent insertion of clauses regulating the period within which the new industry was to be introduced, it is obvious that prior to the rise of the patent specification a privilege became void owing to non-working within a reasonable period on the ground of want of consideration. To the clauses stipulating for the employment of native apprentices may be traced the rise of the common law as to the term for which these exclusive licences could be legally granted. The statutory limitation of the term of the grant to fourteen years (Coke even favoured the shorter term of seven years) was avowedly based upon the consideration that the

¹ This point is important in view of recent readhesions to the theory of the patent grant advocated by Collier in 1803. (Cf. Frost, Robinson, and the U. S. Patent Centennial Vol. 1891.) According to Collier the patent is a commercial privilege, or right of exclusive sale, and derives its origin from certain analogous privileges supposed to have been conveyed by the Charters of the Mediaeval Trading and City Companies. It is now accepted that these charters were obtained in confirmation of certain prescriptive rights of self-government which had grown up without direct authorization of the Crown. These charters 'were never accounted a monopoly,' *Darcy v. Allin*, Noy, 182. In the charter of the Hanseatic League, see Anderson's Commerce, vol. i. p. 227.

patent should not operate in restraint of trade. It must be admitted that the Elizabethan grants undoubtedly erred on the side of generosity in this respect.

The occasional reservation of a small rent in compensation for the loss of customs concludes the last of the differences which we have found to exist between the two systems. These rents formed part of the consideration of the grant, whereas the modern patent fees are based upon a rough estimate of the cost of the civil establishment.

Within recent years a country, whose industrial and financial position bears at least a superficial resemblance to the England of Elizabeth, has copied on to its statute rolls a law which reproduces almost in its entirety the features of the Elizabethan industrial system. By the decree of September 30, 1892, the Portuguese authorities are empowered to grant monopolies for the manufacture of any new industrial products within the country, or for carrying out particular mining and metallurgical operations within certain geographical zones. A 'new industry' is defined as one not actually in process of working in the country at the date of the application. The grant does not affect the right of importation or sale of similar foreign products. The system is open to foreigners, and a proof of working is required within a definite period. As to the practical working of the system, little information is available at present; but that the law has not remained a dead letter is evident from the numerous applications made for these concessions, and already there are signs that the provisions of the law will be effectual in attracting foreign skill and capital to the country. The practical working of the system should be carefully watched with the view of its possible application to the fostering of certain colonial industries, the birth of which the bonus system has hitherto egregiously failed to stimulate.

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